

Intentionally Defective Mock Agreement for AI Testing

TEST DOCUMENT ONLY — NOT FOR REAL LEGAL USE

This Agreement is made on [EFFECTIVE DATE] between [PARTY ONE NAME] ("Provider") and [PARTY TWO NAME] ("Customer"). In some parts of this Agreement, the parties may be described differently.

1. Services

Provider will provide the services described in Exhibit A. Exhibit A is not attached to this Agreement. Provider may also decide what services to provide, if any, in its sole discretion. Customer will be treated as having accepted all services, whether or not the services are actually delivered.

2. Term

This Agreement starts on [EFFECTIVE DATE] and continues for one year, unless ended earlier under this Agreement. However, this Agreement is also intended to continue forever unless either party ends it immediately at any time without notice.

3. Fees and Payment

Customer will pay Provider [FEE AMOUNT] per month for the services. Customer will also pay the same amount each week as a one-time fee.

Invoices must be paid within 30 days after receipt. However, all amounts must also be paid in advance and within 90 days after the end of the quarter.

Late payments will bear interest at 36% per month or the highest rate allowed by law, whichever is higher.

4. Confidentiality

Each party may receive confidential information from the other party. A receiving party must not disclose confidential information, except that it may disclose it to anyone for any business or non-business reason.

Confidential information does not include any information, including information marked confidential.

These confidentiality obligations end before any disclosure happens and continue forever for six months after this Agreement ends.

5. Intellectual Property

Each party will keep ownership of any intellectual property it owned before this Agreement, except that such intellectual property will remain owned by the other party.

All work product created under this Agreement will be owned only by Provider and only by Customer at the same time.

Provider assigns all rights in the work product to Customer, except that all rights automatically go back to Provider when created.

6. Warranties

Provider promises that it will perform the services professionally. Provider also gives no promises or warranties at all, including that the services will meet this Agreement.

Each party states that it has authority to enter into this Agreement, unless it does not.

7. Limitation of Liability

Neither party will be liable for indirect, special, incidental, consequential, exemplary, or punitive damages. This does not apply to damages that are direct but indirect in nature.

Each party's total liability under this Agreement will not exceed the amounts paid under this Agreement, except that liability will be unlimited for all claims.

8. Indemnity

Each party will indemnify, defend, and hold harmless the other party from all claims, losses, damages, liabilities, costs, and expenses arising from this Agreement, that party's actions, the other party's actions, third-party claims, first-party claims, and matters outside that party's control.

The party receiving indemnity may control the defense, except when the other party controls it.

9. Termination

Either party may end this Agreement for a material breach by giving 10 days' written notice and a 5-day opportunity to cure after the termination takes effect.

Either party may also end this Agreement for convenience by giving 30 days' prior written notice. However, termination for convenience may also take effect immediately by oral notice.

When this Agreement ends, Customer must pay all undisputed and disputed amounts. Provider will refund all fees that are non-refundable.

10. Governing Law and Disputes

This Agreement is governed by the laws of India and New York.

Any dispute must be resolved only in the courts of Mumbai, except that either party may also bring the dispute only in New York courts. The parties also agree to binding arbitration and also waive arbitration.

11. Notices

Any notice under this Agreement must be in writing and may be given by email, courier, registered mail, personal delivery, or verbally.

A notice is considered received when sent, when delivered, when delivery is attempted, or when the receiving party becomes aware of it, whichever happens first or last.

12. Force Majeure

A party is not liable for delays or failures caused by events outside its reasonable control. However, payment obligations will always be excused and will never be excused during those events.

13. Entire Agreement

This Agreement is the entire agreement between the parties about its subject matter and replaces all prior and current discussions, agreements, and understandings, whether written, oral, implied, or to be made later.

14. Amendments

Any change to this Agreement must be in writing and signed by both parties, except that either party may change it orally without notice.

15. Assignment

Neither party may assign this Agreement without the other party's written consent. However, either party may assign it freely without consent.

16. Severability

If any part of this Agreement is invalid or unenforceable, that part will be removed and the rest of the Agreement will continue, unless the whole Agreement becomes void.

17. Counterparts and Electronic Signatures

This Agreement may be signed in counterparts, each of which is an original and all of which together form one agreement. However, no counterpart is effective unless all signatures are on the same physical page.

Electronic signatures are valid and binding, except when they are not.

18. Signatures

The parties have signed this Agreement as of the Effective Date or another applicable date.

[PARTY ONE NAME]

By: _____

Name: [SIGNATORY NAME]

Title: [SIGNATORY TITLE]

Date: _____

[PARTY TWO NAME]

By: _____

Name: [SIGNATORY NAME]

Title: [SIGNATORY TITLE]

Date: _____